



U.S. Department of Energy

Categorical Exclusion Determination Form

Project Title:

Program or Field Office:

Location(s) (City/County/State):

Proposed Action or Project Description:

Categorical Exclusion(s) Applied:

For the complete DOE National Environmental Policy Act regulations regarding categorical exclusions, including the full text of each categorical exclusion, see Subpart D of [10 CFR Part 1021](#).

There are no extraordinary circumstances related to the proposal that may affect the significance of the environmental effects of the proposal.

This proposal has not been segmented to meet the definition of a categorical exclusion. This proposal is not connected to other actions with potentially significant impacts (40 CFR 1508.25(a)(1)), is not related to other actions with individually insignificant but cumulatively significant impacts (40 CFR 1508.27(b)(7)), and is not precluded by 40 CFR 1506.1 or § 1021.211 concerning limitations on actions during preparation of an environmental impact statement.

All of the conditions that are integral elements of the classes of actions in Appendix B to Subpart D of 10 CFR Part 1021 would be met. This proposal would not threaten a violation of applicable statutory, regulatory, or permit requirements for environment, safety, and health, or similar requirements of DOE or Executive Orders; require siting and construction or major expansion of waste storage, disposal, recovery, or treatment facilities (including incinerators), but the proposal may include categorically excluded waste storage, disposal, recovery, or treatment actions or facilities; disturb hazardous substances, pollutants, contaminants, or CERCLA-excluded petroleum and natural gas products that preexist in the environment such that there would be uncontrolled or unpermitted releases; have the potential to cause significant impacts on environmentally sensitive resources, including, but not limited to, those listed in paragraph B(4) of Appendix B to Subpart D of 10 CFR Part 1021; involve genetically engineered organisms, synthetic biology, governmentally designated noxious weeds, or invasive species, unless the proposed activity would be contained or confined in a manner designed and operated to prevent unauthorized release into the environment and conducted in accordance with applicable requirements.

Based on my review of information conveyed to me and in my possession (or attached) concerning the proposed action, as NEPA Compliance Officer (as authorized under DOE Order 451.1B), I have determined that the proposed action fits within the specified class(es) of action, the other regulatory requirements set forth above are met, and the proposed action is hereby categorically excluded from further NEPA review.

NEPA Compliance Officer:

Date Determined:

Comments:

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TC12-003



Comptroller General
of the United States

Washington, D.C. 20548

Decision

Matter of: Mil-Base Industries, Inc.

File: B-259949

Date: January 23, 1995

DECISION

Mil-Base Industries, Inc. protests the award of a contract to A.I.W. Alton by the Defense General Supply Center, Defense Logistics Agency (DLA), under solicitation No. SPO440-94-R-1128. Mil-Base challenges the determination that A.I.W. Alton is a responsible contractor.

We dismiss the protest.

A determination that a bidder or offeror is capable of performing a contract is based, in large measure, on subjective judgments which generally are not susceptible to reasoned review. Whether the awardee had the ability and intention of complying with the requirements is simply a matter for the contracting officer, in the exercise of her discretionary business judgment, to consider in making the responsibility determination. An agency's affirmative determination of a contractor's responsibility will not be reviewed by our Office absent a showing of possible fraud or bad faith on the part of procurement officials, or that definitive responsibility criteria in the solicitation may have been misapplied. 4 C.F.R. § 21.3(m)(5); King-Fisher Co., B-236587.2, Feb. 12, 1990, 90-1 CPD ¶ 177. While Mil-Base alleges that a more thorough investigation or pre-award survey would have shown that A.I.W. Alton was not responsible, that, even if true, does not establish that the agency may have acted fraudulently or in bad faith. It is simply up to the agency, which must bear the burden of deficient contract performance, to decide what is necessary in order to determine if a bidder or offeror is capable of performing the contract. DLA's approach—which did not include a pre-award survey—therefore is a permissible one and provides no basis for our review of this matter.

A handwritten signature in cursive script that reads "Ronald Berger".

Ronald Berger
Associate General Counsel